

Stereo. H C J D A 38.
JUDGMENT SHEET

LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT

Writ Petition No.6358/2025

Rizwan Rasheed **Versus** Additional District Judge etc.

J U D G M E N T

Date of Hearing:	05.05.2026
Petitioner by:	Mr. Nadeem Iqbal Chaudhry and Mr. Muhammad Saleem Khan, Advocates.
Respondent No.3 by:	Mr. Abdul Ghaffar Khan Chughtai, Advocate.

Anwaar Hussain, J. The petitioner/defendant has laid challenge to the order dated 17.04.2025, passed by the Trial Court, whereby his application under Order XVI Rule 1(2) of the Code of Civil Procedure, 1908 (“**CPC**”), seeking permission to summon the Branch Manager of Habib Bank Limited, Baldia Road Branch, Hasilpur (“**the Branch Manager**”), where respondent No.3 (“**the respondent/plaintiff**”) maintains an account, as a court witness along with original record, was dismissed. Order dated 17.04.2025 was maintained by the Revisional Court below, through judgment dated 14.07.2025. Hence, the present constitutional petition.

2. The genesis of the dispute lies in a suit, for specific performance, instituted by the respondent/plaintiff. It is case of the respondent/plaintiff that the petitioner/defendant, executed an agreement to sell with one Mst. Manzooran Bibi, and had also received a sum of Rs. 3,100,000/- from him, to pay balance sale consideration to said Mst. Manzooran Bibi during the proceedings in a suit instituted by the petitioner/defendant, against Mst.

Manzooran Bibi, which makes the respondent/plaintiff a co-purchaser. It is a matter of record that the suit filed by the petitioner/defendant against Mst. Manzooran Bibi, for specific performance, was decreed in favour of the petitioner/defendant. The respondent/plaintiff asserted that, by virtue of the said decree and alleged payment, he became a purchaser/beneficiary in respect of the land purchased by the petitioner/defendant from Mst. Manzooran Bibi. *Per contra*, the petitioner/defendant has categorically denied receipt of any amount, for purpose of payment of sale consideration under the agreement of the petitioner/defendant with Mst. Manzooran Bibi, and contends that although a cheque was issued by the respondent/plaintiff, the same was returned and never encashed, for the purpose of completion of the transaction, with Mst. Manzooran Bibi.

3. After settlement of issues, both parties submitted their respective lists of witnesses, under Order XVI Rule 1(1), CPC. Significantly, the name of the Branch Manager was duly incorporated in the list of witnesses filed by the respondent/plaintiff. However, the respondent/plaintiff chose not to examine the said witness and did not produce the relevant bank record. After recording of evidence of the respondent/plaintiff, the petitioner/defendant filed an application for summoning of the Branch Manager, which was declined for the reason that name of the said witness was not included in the list submitted by the petitioner/defendant.

4. Learned counsel for the petitioner/defendant submits that through the impugned orders, the Courts below have turned down the application of the petitioner/defendant filed for summoning of the Branch Manager, on the ground that the petitioner/defendant did not mention the name of Branch Manager or the cheque in question in his list of witnesses and in the list submitted under Order VII Rule 14, CPC, respectively. Contends that the said finding is not

sustainable for the reason that additional issues were framed on 20.03.2024, whereafter, it was incumbent upon the Trial Court to provide an opportunity to the parties to submit fresh/supplementary list of witnesses in terms of Order XVI, Rule 1(1), CPC but the said opportunity was not provided.

5. Conversely, learned counsel for the respondent/plaintiff supported the impugned findings.

6. Arguments heard. Record perused.

7. The legal framework under Order XVI Rule 1, CPC draws a clear distinction between the witnesses whose names are reflected in the list filed under Rule 1(1) and those omitted therefrom. Order XVI Rule 1(1) and (2), CPC after amendment by Lahore High Court, read as under¹:

“(1) **The Court shall, immediately after framing of the issues, require the parties to file a list of witnesses in the Court within such period, not later than seven days, as the Court may fix.**

(2) A party shall not be permitted to call witnesses other than those contained in the list, except with the permission of the Court and after showing good cause for the omission of the said witnesses from the list and the Court shall record reasons for granting permission.”

(Emphasis supplied)

Perusal of Rule 1(1) reveals that where the name of a witness finds mentioned in the list of witnesses, the right to summon such

¹ Amended by Lahore High Court, through Notification No. 237/legis/XI-Y-26, dated 15.08.2018, w.e.f. 01.11.2020 vide Notification No. 259/Legal/XI-Y-26, dated 23-10-2020. Before the amendment, Order XVI, Rule 1(1) and (2), CPC reads as under:

(1) Not later than seven days after the settlement of issues, the parties shall present in Court a certificate of readiness to produce evidence, alongwith a list of witnesses whom they propose to call (or produce) either to give evidence or to produce documents.

(2) A party shall not be permitted to call (or produce) witnesses other than those contained in the said list, except with the permission of the Court and after showing good cause for the omission of the said witnesses from the list; and if the Court grants such permission, it shall record reasons for so doing.

witness is a statutory right of the party, subject only to deposit of expenses. In such circumstances, the Court performs a ministerial act and ordinarily cannot refuse issuance of process on the ground of relevance or necessity of the witness. The list itself furnishing the basis to call the witness. Conversely, where the name of a witness does not appear in the said list, the mandate of Rule 1(2) is that the party is precluded from calling or producing such witness except with the permission of the Court. Such permission is not a matter of right but rests in judicial discretion, to be exercised upon the party demonstrating “good cause” for the omission and satisfying the Court that the evidence is necessary for a just decision of the case. The law further requires that reasons be recorded where such permission is granted.

8. The distinction, therefore, is fundamental: inclusion of the name in the list confers a statutory right to summon the witness, whereas omission from the list creates a bar, which can only be lifted upon showing good cause. The discretion so vested is to be exercised judicially, to ensure that procedural rules advance, and do not impede, the cause of justice. In the present case, since the name of witness does not appear in the petitioner/defendant’s list, the matter turns upon the existence of good cause within the contemplation of Order XVI. Hence, the nub of the matter is that whether good cause was exhibited or not, in the present case. Record depicts that when issues were initially framed, both sides submitted lists of witnesses and name of the Branch Manager was included in the list of the respondent/plaintiff *albeit* said witness was not produced/ called upon by the respondent/plaintiff. At this juncture, it is imperative to observe that on 20.03.2024, the Trial Court framed additional issues in the following terms:

“Issue No.1-A

Whether the suit of the plaintiff is within the time?OPP.

Issue No.2-A.

Whether the impugned cheque No.T16621521 to the tune of Rs.16,00,000/- was of the plaintiff and as the defendant was partner in Oil Mill and other businesses with the defendant, therefore, defendant gave the impugned cheque in the suit of Mst. Manzooran Bibi and later-on the same was returned to the plaintiff. If any transaction is executed on the basis of said cheque then the same is bogus and false?OPD.”

It is noteworthy that after framing of the said additional issues, the parties were not called upon to file supplementary lists of witnesses. The respondent/plaintiff thereafter concluded his evidence without producing any evidence from the bank concerned.

9. However, at the stage of defence evidence, the petitioner/defendant moved an application under Order XVI, Rule 1(2), CPC seeking permission to summon the Branch Manager along with original record in relation to the cheque in question. Hence, question is whether there existed good cause. The expression “good cause” occurring in Order XVI Rule 1(2), CPC is to be examined in the context of the facts and circumstances of each case. In the present case, good cause for granting permission to summon the witness (the Branch Manager) stands established by two-fold basis. Firstly, after the framing of additional issues, the Trial Court did not specifically call upon the parties to submit fresh list of witnesses. Under the amended Rule 1(1) of Order XVI, CPC, filing of list of witnesses is not automatic duty cast upon the parties; rather, the matter is left to the act of the Court, directing the parties to submit such list. Admittedly, no such direction was issued in the present case. Secondly, it is apparent from the record that additional issue No.2-A relating to the cheque purportedly issued by the respondent/plaintiff was framed. The question whether the cheque was returned or encashed is directly connected with the record maintained by the bank of the respondent/plaintiff. The Branch Manager sought to be summoned is an official of the

respondent/plaintiff's bank, whose name already appears in the respondent/plaintiff's list of witnesses. The petitioner/defendant had good cause for not including the Branch Manager in his own list of witnesses as the said witness had already been cited by the respondent/plaintiff and was expected to appear alongwith the relevant record for the purpose of examination-in-chief, followed by cross-examination by the petitioner/defendant. Admittedly, said witness was withheld by the respondent/plaintiff, which constrained the petitioner/defendant to move the application. Therefore, the request of the petitioner/defendant to summon the Branch Manager cannot be examined in isolation from these developments in the suit proceedings. Refusal to summon the Branch Manager would prejudice the defence of the petitioner/defendant as burden to prove issue No.2-A is cast upon the petitioner/defendant.

10. It is well settled that procedural provisions are intended to facilitate the administration of justice. The Courts should adopt an approach, which advances the cause of justice, particularly where the evidence sought to be produced is relevant for a proper adjudication of the controversy. The summoning of the Branch Manager along with record would assist the Trial Court in effectively resolving the issue relating to the cheque and its beneficiary. No prejudice is likely to be caused to the respondent/plaintiff if such permission is granted. These aspects of the matter have not been kept in sight by the Courts below, while passing the impugned orders.

11. In view of the above, the impugned orders passed by the Courts below are not sustainable in the eye of law and suffer from material irregularity in the exercise of discretion. Consequently, this constitutional petition is **allowed**. The impugned orders dated 17.04.2025 and 14.07.2025 passed by the Courts below are set

aside. As a corollary, the application filed by the petitioner/defendant under Order XVI Rule 1(2), CPC is accepted.

(ANWAAR HUSSAIN)
Judge

Approved for reporting

Judge

Akram